

25STCV13331 25STCV13331

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-20

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Case Number: 25STCV13331 Hearing Date: August 20, 2026 Dept: 408

Plaintiff Ivan Arturo Ordonez Gonzalez's Motion for Attorney's Fees and Costs is GRANTED in part and DENIED in part. Attorney's fees are AWARDED, in favor of Plaintiff and against Defendant, in the reduced amount of \$18,988.08.

I.

BACKGROUND

On May 7, 2025, Plaintiff Ivan Arturo Ordonez Gonzalez ("Plaintiff") filed a complaint against Defendant General Motors, LLC ("Defendant") alleging causes of action for:

1. Breach of Implied Warranty of Merchantability;
2. Breach of Express Warranty; and
3. Violation of Song Beverly Consumer Warranty Act.

On June 16, 2025, Defendant filed an answer to Plaintiff's complaint.

On December 8, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On February 6, 2026, pursuant to Plaintiff's oral request, the court dismissed the case without prejudice with the court to retain jurisdiction under Code of Civil Procedure section 664.6.

On June 22, 2026, Plaintiff filed this Motion for Attorney's Fees and Costs. On August 7, 2026, Defendant filed an opposition. On August 13, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARD

A

prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.)

III.

DISCUSSION

1.

Parties'

Arguments

Plaintiff

moves the court to award \$31,428.08, comprised of \$22,450.00 in attorney's fees, \$888.08 in costs, \$3,000.00 for Plaintiff's counsel to review Defendant's opposition and draft a reply, and \$5,090.00 in a 0.2 lodestar multiplier. (Motion, at p. 1; Kashani Decl., ¶ 17.)

In

opposition, Defendant argues that Plaintiff's motion is untimely. (Opp., at pp. 3-4.) Alternatively, Defendant also disputes the reasonableness of the attorney's fees and costs and argues that a multiplier should not be granted. (Id., at pp. 4-11.)

A motion for

attorney's fees must be served and filed within the time for filing a notice of appeal. (Cal. Rules of Court, rule 3.1702, subd. (b).) Unless there is an

extension, this time is the shorter of 180 days after entry of judgment or 60 days after notice of entry of judgment is served. (Cal. Rules of Court, rule 8.104, subd. (a).) "A voluntary dismissal is 'effectively a "judgment"' within the meaning of the rule prescribing the time to appeal." (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 649.) Therefore, "[a] voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (Ibid.)

On February 6, 2026, the court dismissed the case without prejudice with the court to retain jurisdiction under Code of Civil Procedure section 664.6 pursuant to Plaintiff's oral request. (Opp., at pp. 3-4; Kay Decl., ¶ 8, Exhs. C-D.) Defendants contend that, although the parties waived notice at the hearing, the court served the parties with the order of dismissal on this same date thereby triggering the 60 day deadline making the filing of the instant motion on June 22, 2026, was therefore untimely. (Id., at p. 4.)

The court disagrees that the notice provided by the court triggered the 60 day deadline to file this motion based on the representation that Plaintiff did not have written notice of the court's order dismissing the action. (Reply, at p. 3.) Moreover, Plaintiff filed this motion less than 180 days from the February 6, 2026, minute order. Accordingly, the court will consider the motion on the merits.

2.

Authority
for Fees & Prevailing Party

a.

Legal
Standard

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794, subd. (d).)

Section

1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794.)

Thus,

the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Ibid.)

b. Discussion

The parties entered into a settlement agreement in the amount of \$40,193.51, plus reasonable attorney's fees, costs, and expenses. (Kashani Decl., ¶ 10, Exh. C.) The terms of the settlement provide that Defendant will pay Plaintiff's attorney's fees and costs pursuant to this motion. As such, Plaintiff is the prevailing party and is entitled to recover her reasonable attorney's fees and costs under the settlement agreement and Section 1794(d).

3.

Method

of Calculation for Fees

a.

Legal

Standard

In

determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors

specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

b.

Discussion

Considering

that neither party proposes a different method for calculating fees, the court uses the lodestar adjustment method.

4.

Reasonableness

of the Fees Claimed

a.

Reasonableness

of the Hourly Rates

i. Legal Standard

“The

courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437 [citations omitted].)

ii. Discussion

Plaintiff’s

counsel claims an hourly rate of \$675.00 per hour for Counsel Jacob Kashani; \$600.00 per hour for Counsel Derrick Chu; and \$600.00 per hour for Counsel

Julian Moore. (Motion, at p. 6; Kashani Decl., ¶¶ 11-13.)

After considering the information provided, the court finds that the appropriate hourly rate for Counsel Jacob Kashani, Derrick Chu, and Julian Moore is \$500.00 per hour consistent with counsel's level of experience.

b.

Reasonableness
of the Number of Hours

i. Legal Standard

"Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances, of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [cleaned up].)

ii. Discussion

Plaintiff's

counsel claims a total of 37.2 hours incurred in litigating the instant action. (Kashani Decl., ¶ 9, Exh. B.) From a review of the billing records, it appears that 11.7 hours were incurred by Counsel Jacob Kashani, 24.5 hours were incurred by Counsel Julian Moore, and 1.0 hours were incurred by a number of unidentified staff. (Ibid.) There is no record of any hours incurred by Counsel Derrick Chu.

Accordingly,

Plaintiff's requested attorney's fees in the reduced amount of \$18,100.00 comprised

of 11.7 hours incurred by Counsel Jacob Kashani and 24.5 hours incurred by Counsel Julian Moore. The court also notes that Counsel Jacob Kashani has billed 3.0 hours to prepare this motion. The court declines to award an additional \$3,000.00 for Plaintiff's counsel to review Defendant's opposition and draft a reply based on the simple nature of this motion.

c. Reasonableness of Multiplier

i. Legal Standard

Relevant

factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

ii. Discussion

Plaintiff

requests that a multiplier of 0.2 be applied to the combined lodestar for an additional \$5,090.00 in recovery. (Motion, at pp. 9-10.)

The

court denies Plaintiff's request for a lodestar multiplier. Given the routine work done in this case and the results obtained, a multiplier is not appropriate. The contingent risks, preclusion of other work, skill, and difficulty counsel assert are absorbed by counsel's hourly rates. (Robertson v. Fleetwood Travel Trailers of California Inc. (2006) 144 Cal.App.4th 785, 822.) As such, any contingency risk factor is already accounted for in Counsel's hourly rate.

5. Reasonableness of the Costs Claimed

Plaintiff

requests \$888.08 in costs and expenses incurred in litigating this matter. (Motion, at p. 10; Kashani Decl., ¶ 16, Exh. E.)

The court notes that as a prevailing party, Plaintiff can obtain costs pursuant to Civil Code section 1794(d). Thus, the court finds that

these costs are reasonable and allowable under at least one of the cost statutes.

The court will award \$888.08 in costs and expenses.

IV.

CONCLUSION

Plaintiff Ivan Arturo Ordonez Gonzalez's Motion for Attorney's Fees and Costs is GRANTED in part and DENIED in part. Attorney's fees are AWARDED, in favor of Plaintiff and against Defendant, in the reduced amount of \$18,988.08.